

WARNING:

NO REPRESENTATION IS MADE THAT THIS FORM OF CONTRACT FOR THE SALE AND PURCHASE OF REAL ESTATE COMPLIES WITH SECTION 5-702 OF THE GENERAL OBLIGATIONS LAW ("PLAIN ENGLISH"). CONSULT YOUR LAWYER BEFORE SIGNING IT.

NOTE: FIRE AND CASUALTY LOSSES:

This contract form does not provide for what happens in the event of fire or casualty loss before the title closing. Unless different provision is made in this contract. Section 5-1311 of the General Obligations Law will apply. One part of that law makes a purchaser responsible for fire and casualty loss upon taking of title to or possession of the premises.

DATE:

CONTRACT OF SALE made as of the _____ day of _____, 2021

PARTIES:

BETWEEN

IPA Asset Management, LLC, with an address of 45 Sarah Drive, Farmingdale, NY

hereinafter called "SELLER", who agrees to sell:

Timothy Porter, with an address of 43 Popletown Road, New Paltz, NY 12561 and
Hank Uberoi, with an address of 321 upper mountain avenue, Montclair, NJ 07043

hereinafter called "PURCHASER"

PREMISES:

Seller shall sell and convey, and Purchaser shall purchase the property, including all buildings and improvements thereon (the "PREMISES"), more fully described on a separate page marked "Schedule A", also known as:

Address: **724 Old Post Road, New Paltz, NY 12561**

Tax Map Designation: **71.2-2-42.200**

Together with SELLER'S interest, if any, in streets and unpaid awards as set forth in Paragraph 11.

PERSONAL PROPERTY:

The sale also includes all fixtures and articles of personal property attached to or used in connection with the PREMISES, unless specifically excluded below. SELLER states that they are paid for and owned by SELLER free and clear of any lien other than the EXISTING MORTGAGE(S). They include but are not limited to plumbing, heating, lighting and cooking fixtures, bathroom and kitchen cabinets, mantels, door mirrors, venetian blinds, shades, screens, awning, storm windows, window boxes, storm doors, mail boxes, weather vanes, flagpoles, pumps, shrubbery, fencing, outdoor statuary, tool sheds, and dishwasher, range, refrigerator, washer and dryer that belong to the seller, as same presently exist.

PURCHASE PRICE:

1. (a) The purchase price is:	\$ 1,200,000.00
Payable as follows:	
On signing of Binder	\$
On the signing of this contract, by check subject to collection: To be held in escrow by Seller's attorney By allowance for the principal amount still unpaid on EXISTING MORTGAGES:	\$ 120,000.00 \$
By a Purchase Money Note and Mortgage from PURCHASER (or assign) to Seller:	\$ 600,000.00
BALANCE AT CLOSING:	\$ 1,080,000.00

EXISTING MORTGAGE:

2. Intentionally Omitted.

ACCEPTABLE FUNDS:

3. All money payable under this contract unless otherwise specified, shall be either:
 - a. Cash, but not over One Thousand (\$1,000.00) Dollars,
 - b. Good certified check of PURCHASER, or official check of any bank, savings bank, trust company, or savings and loan association having a banking office in the State of New York, payable to the order of SELLER.
 - c. Money other than the purchase price, payable to SELLER at CLOSING, may be by check of PURCHASER up to the amount of Five Hundred Dollars (\$ 500.00) dollars, or
 - d. As otherwise agreed to in writing by SELLER or SELLER'S attorney.

"SUBJECT TO" PROVISIONS:

4. The PREMISES are to be transferred subject to:
 - a. Laws and governmental regulations that affect the use and maintenance of the PREMISES, provided that they are not violated by the buildings and improvements erected on the PREMISES,
 - b. Consents for the erection of any structures on, under or above any streets on which the PREMISES abut,
 - c. Encroachments of stoops, areas, cellar steps, trim and cornices, if any, upon any street or highway.
 - d. Subject to any state of facts an accurate survey may reveal provided same does not render title unmarketable.
 - e. Easements and restrictions of record, provided same do not render title unmarketable.

SELLERS REPRESENTATIONS:

5. Seller represents to purchaser that:

- a. Seller is not a "foreign person," as that term is defined for purposes of Foreign Investment in Real Property Tax Act, Internal Revenue Code ("IRC") Section 1445, as amended, and the regulations promulgated thereunder (collectively "FIRPTA");
- b. Seller has been known by no other name in the past ten years, except
- c. None of Seller's covenants, representations, warranties or other obligations contained in this contract or any riders shall survive closing unless specifically stated.
- d. Seller represents that the premises abut or have access to a public highway, to wit:

Old Post Road, New Paltz

INSURABLE TITLE:

6. Seller shall give and Purchaser shall accept such title as any reputable title insurance or abstract company licensed to do business in the State of New York shall be willing to approve and insure in accordance with their standard form of title policy, subject only to the matters provided for in this contract. However, seller shall not be obligated to take any action or incur any expenses to provide insurable title. If title is not insurable then purchaser's only recourse shall be to cancel this Contract.

ESCROW:

7. A. The Seller's attorney, (Escrowee) shall hold the Downpayment for seller's account in Escrowee's escrow account. The Escrowee is authorized to deliver money held in escrow or Escrowee may release money upon written, duly executed authorization by all parties to the Contract.

B. The parties acknowledge that, although Escrowee is holding Downpayment for seller's account, for all other purposes Escrowee is acting solely as a stakeholder at their request and for their convenience and that Escrowee shall not be liable to either party for any act or omission on its part unless taken or suffered in bad faith or in willful disregard of this contract or involving gross negligence on the part of Escrowee. Seller and purchaser jointly and severally agree to defend, indemnify and hold Escrowee harmless from and against all costs, claims and expenses (including reasonable attorneys' fees) incurred in connection with the performance of Escrowee's duties hereunder, except with respect to actions or omissions taken or suffered by Escrowee in bad faith or in willful disregard of this Contract or involving gross negligence on the part of Escrowee.

Escrowee may act or refrain from acting in respect of any matter referred to herein in full reliance upon and with the advice of counsel which may be selected by it (including any member of its firm) and shall be fully protected in so acting or refraining from action upon the advice of such counsel.

C. In the event the parties become involved in a dispute by reason of the Agreement of Sale, the purchaser and the seller hereby authorize the Escrowee to at any time deposit all funds delivered to the Escrowee with the Clerk of the Court in the County in which the premises are situate. The Escrowee shall then be fully relieved and discharged of any further responsibility hereunder. In the event of a threatened litigation, the Escrowee is also authorized to interplead all interested parties in any court of competent jurisdiction, and to deposit with the Clerk of such court all such funds. The Escrowee shall then be fully relieved and discharged of any further responsibilities hereunder.

D. Escrowee or any member of its firm shall be permitted to act as counsel for seller

in any dispute as to the disbursement of the Downpayment or any other dispute between the parties whether or not Escrowee is in possession of the Downpayment and continues to act as Escrowee.

CLOSING DEFINED AND FORM OF DEED:

6. "CLOSING" means the settlement of the obligations of SELLER and PURCHASER to each other under this contract, including the payment of the purchase price to SELLER, and the delivery to PURCHASER of a BARGAIN AND SALE DEED WITH COVENANTS AGAINST GRANTORS ACTS deed in proper statutory form for recording so as to transfer full ownership (fee simple title) to the PREMISES, free of all encumbrances except as herein stated. The deed will contain a covenant by SELLER as required by Section 13 of the Lien Law.

If SELLER is a corporation, it will deliver to PURCHASER at the time of CLOSING (a) a resolution of its Board of Directors authorizing the sale and delivery of the deed, and (b) a certificate by the Secretary or Assistant Secretary of the corporation certifying such resolution and setting forth facts showing that the transfer is in conformity with the requirements of Section 909 of the Business Corporation Law. The deed in such case shall contain a recital sufficient to establish compliance with that section.

CLOSING DATE AND PLACE:

9. The closing will take place at the offices of PETER F. MATERA, ESQ., 2165 Broadway, West Park, New York 12493 on or about February 19, 2021 at 10:00 AM., or at the office of a local lending institution within twenty (20) miles of the premises to be conveyed. In the event that closing is to take place at a location more than twenty (20) miles of the premises to be conveyed, then purchaser shall pay seller's attorney \$350.00 per hour for seller's attorney's travel time both to and from the place of closing, which payment shall be made in advance of the closing date.

BROKER:

10. PURCHASER hereby states that PURCHASER has not dealt with any broker in connection with this sale other than Quinn Realty Group, Inc.. Seller and Purchaser shall indemnify and defend each other against any costs, claims and expenses, including reasonable attorneys' fees, arising out of the breach of their respective parts of any representation or agreement contained in this paragraph. The provisions of the paragraph shall survive the Closing or, if Closing does not occur, the termination of this Contract.

STREETS AND ASSIGNMENT OF UNPAID AWARDS:

11. This sale includes all of SELLER'S ownership and rights, if any, in any land lying in the bed of any street or highway, opened or proposed, in front of or adjoining the PREMISES to the center line thereof. It also includes any right of SELLER to any unpaid award by reason of any taking by condemnation and/or for any damage to the PREMISES by reason of change of grade of any street or highway. SELLER will deliver at no additional cost to PURCHASER, at CLOSING, or thereafter, on demand, any documents which PURCHASER may require to collect the award and damages.

MORTGAGEE'S CERTIFICATE OR LETTER AS TO EXISTING MORTGAGE(S):

12. SELLER agrees to deliver to PURCHASER at CLOSING a certificate dated not more than thirty (30) days before CLOSING signed by the holder of each EXISTING MORTGAGE, in form for recording, certifying the amount of the unpaid principal and interest, date of maturity, and rate of interest.

SELLER shall pay the fees for recording such certificate. If the holder of a mortgage is a bank or

other institution as defined in Section 274-a, Real Property Law, it may, instead of the certificate, furnish an unqualified letter dated not more than thirty (30) days before CLOSING containing the same information, SELLER hereby states that any EXISTING MORTGAGE will not be in default at the time of CLOSING.

COMPLIANCE WITH STATE AND MUNICIPAL DEPARTMENT VIOLATIONS AND ORDERS:

13.a. Intentionally Omitted. Premises is being sold "as is".

OMIT IF THE PROPERTY IS NOT IN THE CITY OF NEW YORK:

b. Intentionally Omitted.

APPORTIONMENTS:

14. Closing Adjustments: (a) The following adjustments shall be made as of 11:59P.M. of the day before the Closing: (i) Real estate taxes and water charges and sewer rents, if separately assessed, on the basis of the fiscal period for which assessed, except that if there is a water meter with respect to the Unit, apportionment shall be based on the last available reading, subject to adjustment after the Closing, promptly after the next reading is available; provided, however, that in the event real estate taxes have not, as of the date of Closing, been separately assessed to the Unit, real estate taxes shall be apportioned on the same basis as provided in the Declaration or By-Laws or, in the absence of such provision, based upon the Unit's percentage interest in the Common Elements; (b) If at the time of Closing the Unit is affected by an assessment which is or may become payable in installments, then, for the purposes of this Contract, only the unpaid installments which are then due shall be considered due and are to be paid by Seller at the Closing. All subsequent installments at the time of Closing shall be the obligation of Purchaser. (c) Common charges, if any; (d) any errors or omissions in computing closing adjustments shall be corrected. This subparagraph 14(d) shall survive the Closing. (e) Fuel, if any.

WATER METER READINGS:

15. If there be a water meter on the PREMISES, SELLER shall furnish a reading to a date not more than thirty days before CLOSING date and the unfixed meter charge and sewer rent, if any, shall be apportioned on the basis of such last reading.

ALLOWANCE FOR UNPAID TAXES, ETC.:

16. SELLER has the option to credit PURCHASER as an adjustment of the purchase price with the amount of any unpaid taxes, assessments, water charges and sewer rents, together with any interest and penalties thereon to a date not less than five business days after CLOSING, provided that official bills therefor computed to said date are produced at CLOSING.

USE OF PURCHASE PRICE TO PAY ENCUMBRANCES:

17. If there is anything else affecting the sale which SELLER is obligated to pay and discharge at CLOSING, SELLER may use any portion of the balance of the purchase price to discharge it. As an alternative, SELLER may deposit money with the title insurance company employed by PURCHASER required by it to assure its discharge, but only if the title insurance

company will insure PURCHASER'S title clear of the matter or insure against its enforcement out of the PREMISES. Upon request made within a reasonable time before CLOSING, PURCHASER agrees to provide separate certified checks as requested to assist in clearing up these matters.

AFFIDAVIT AS TO JUDGMENTS, BANKRUPTCIES:

18. If a title examination discloses judgments, bankruptcies or other returns against persons having names the same as or similar to that of SELLER, SELLER shall deliver a satisfactory detailed affidavit at CLOSING showing that they are not against SELLER.

DEED TRANSFER AND RECORDING TAXES:

19. At CLOSING, SELLER shall deliver a certified check payable to the order of the appropriate State, City or County officer in the amount of any applicable transfer and/or recording tax payable by reason of the delivery or recording of the deed, together with any required tax return. PURCHASER agrees to duly complete the tax return and to cause the check(s) and the tax return to be delivered to the appropriate officer promptly after CLOSING.

SELLER'S INABILITY TO CONVEY AND LIMITATION OF LIABILITY:

20. If SELLER is unable to transfer title to PURCHASER in accordance with this contract, SELLER'S sole liability shall be to refund all money paid on account of this contract, plus all charges* made for: (i) examining the title, (ii) any appropriate additional searches made in accordance with this contract, and (iii) survey and survey inspection charges. Upon such refund and payment this contract shall be considered cancelled, and neither SELLER nor PURCHASER shall have any further rights against the other.

* = Total not to exceed \$175.00

CONDITION OF PROPERTY:

21. PURCHASER has inspected the buildings on the PREMISES and the personal property included in this sale and is thoroughly acquainted with their condition. PURCHASER agrees to purchase them "as is" and in their present condition subject to reasonable use, wear, tear, and natural deterioration between now and CLOSING. PURCHASER shall have the right, after reasonable notice to SELLER, to inspect them within 48 hours prior to CLOSING.

DEFAULTS AND REMEDIES:

22. (a.) If Purchaser defaults hereunder, Seller's sole remedy shall be to receive and retain the Downpayment as liquidated damages, it being agreed that Seller's damages in case of Purchaser's default might be impossible to ascertain and that the Downpayment constitutes a fair and reasonable amount of damages under the circumstances and is not a penalty.

(b.) If Seller defaults hereunder, Purchaser shall have such remedies as Purchaser shall be entitled to at law or in equity, including, but not limited to specific performance.

NOTICES:

23. Any notice or other communication ("Notice") shall be in writing and either:

(a), sent by either of the parties hereto or by their respective attorneys who are hereby authorized to do so on their behalf or by the Escrowee, by registered or certified mail, postage prepaid, or

(b) delivered in person or by overnight courier, with receipt acknowledged, to the respective addresses given in this contract for the party and the Escrowee, to whom the Notice is to be given, or to such other address as such party or Escrowee shall hereafter designate by Notice given to the other party or parties and the Escrowee pursuant to this paragraph. Each Notice mailed shall be deemed given on the third business day following the date of mailing the same, except that any notice to Escrowee shall be deemed given only upon receipt by Escrowee and each Notice delivered in person or by overnight courier shall be deemed given when delivered, or

(c) with respect to paragraph 2 (b), sent by fax to the party's attorney. Each Notice by fax shall be deemed given when transmission is confirmed by the sender's fax machine. A copy of each Notice sent to a party shall also be sent to the party's attorney. The attorneys for the parties are hereby authorized to give and receive on behalf of their clients all Notices and deliveries. This contract may be delivered as provided above or by ordinary mail.

ASSIGNMENT:

24. Purchasers may assign this contract to a corporation or LLC provided Purchasers are at least a 51% owner in such entity. In the event of assignment, Purchasers shall immediately notify seller of said assignment. In the event of such assignment, Purchasers remains liable as Purchasers under this contract of sale.

MISCELLANEOUS:

25. (a.) All prior understandings and agreements between SELLER and PURCHASER are merged in this contract. It completely expresses their full agreement. It has been entered into after full investigation, neither party relying upon any statements made by anyone else that are not set forth in this contract.

(b.) Neither this contract nor any provision thereof may be waived, changed or cancelled except in writing. This contract shall also apply to and bind the heirs, distributees, legal representatives, successors and permitted assigns of the respective parties. The parties hereby authorize their respective attorneys to agree in writing to any changes in dates and time periods provided for in this contract.

(c.) Any singular word or term herein shall also be read as in the plural whenever the sense of this contract may require it.

(d.) The captions in this contract are for convenience of reference only and in no way define, limit or describe the scope of this contract and shall not be considered in the interpretation of this contract or any provision hereof.

(e.) This contract shall not be binding or effective until duly executed and delivered by Seller and Purchaser.

(f.) Seller and Purchaser shall comply with IRC reporting requirements, if applicable. This subparagraph shall survive closing.

(g.) Each party shall, at any time and from time to time, execute, acknowledge where appropriate and deliver such further instruments and documents and take such other action as may be reasonably requested by the other in order to carry out the intent and purpose of this contract. This subparagraph shall survive closing.

(h.) This contract is intended for the exclusive benefit of the parties hereto and, except as otherwise expressly provided herein, shall not be for the benefit of, and shall not create any rights in, or be enforced by, any other person or entity.

LEAD PAINT INSPECTION:

26. This contract is contingent upon a risk assessment or inspection of the property for the presence of lead-based paint and/or lead-based paint hazards at the purchaser's expense until 9:00 P.M. on the tenth calendar day after the date of this contract. (Intact lead-based paint that is in good condition is not necessarily a hazard. See the EPA Pamphlet "Protect Your Family From Lead in Your Home: for more information). This contingency will terminate at the above predetermined deadline unless the purchaser or purchaser's agent delivers to the seller or seller's agent a written contract addendum listing the specific existing deficiencies and corrections needed, together with a copy of the inspection and/or risk assessment report. The SELLER may, at the SELLER'S option within five (5) days after delivery of the addendum, elect in writing whether to correct the condition(s) prior to settlement. If the seller will correct the condition, the SELLER shall furnish the PURCHASER with certification from a risk assessor or inspector demonstrating that the condition has been remedied before the date of settlement. If the SELLER makes a counter-offer, the PURCHASER shall have five (5) days to respond to the counter-offer or remove this contingency and take the property in "as is" condition or this contract shall become void. The PURCHASER may remove this contingency at any time without cause.

TITLE OBJECTIONS:

27. PURCHASER agrees to notify SELLER'S attorney, in writing at least five (5) days prior to CLOSING of any objections to title, and if necessary SELLER shall be entitled to a reasonable adjournment in order to clear up the same, adjournment not to exceed thirty (30) days.

DAMAGE TO THE PREMISES:

28. Notwithstanding the liability for risk of loss or damage of premises due to fire, the parties agree that should the premises be damaged by fire or elements, the Seller shall have the option of repairing the damage and proceeding with this contract or declaring the same null and void and the sole liability of the seller in the latter case will be the return to the purchaser of the sums paid to the seller on account hereof.

MORTGAGE PICK-UP:

29. Purchaser's title company shall not charge seller a mortgage pick-up fee of more than One Hundred Fifty Dollars (\$150.00). Purchaser agrees to pay an amount of said fee in excess of One Hundred Fifty Dollars (\$150.00).

DISCLOSURE STATEMENT:

30. In lieu of providing a real property disclosure statement as required pursuant to real property laws section 462, purchaser shall receive a credit of \$500.00 at closing. In the event that seller or anyone on behalf of seller has provided a real property disclosure statement to purchaser, that statement is hereby voided. Purchaser acknowledges, represents, and warrants that purchaser is not relying on any representation made by any real property disclosure statement in purchasing the premises and hereby waives any claim or action that may be available to purchaser, pursuant to any real property disclosure statement or representation made therein. It is the intention of the parties that the closing of title shall terminate seller's obligations to purchaser and that seller has made no representation (implied or

otherwise) to purchaser, regarding the condition of the property, except as made and specifically stated within this contract.

SURVIVE CLOSING:

31. Notwithstanding anything to the contrary contained herein, it is understood and agreed that upon closing of title and delivery of deed, all representations and promises made herein shall terminate, except for those items which are specifically designated as surviving closing.

CONTRACT:

32. This proposed contract shall not be deemed an offer on the part of the seller or purchaser and this contract shall not be binding upon the seller or purchaser until both the seller and purchaser have signed this contract and the seller's attorney has mailed or delivered the fully signed contract to the attorney for the purchaser. In the event that the escrow deposit check is returned for any reason, in addition to any other remedies the seller may have, the seller may, at seller's sole and exclusive options, cancel this contract and declare it void. This contract must be signed by purchaser and returned to seller's attorney with the downpayment within fifteen days of the contract being sent to purchaser or purchaser's attorney. If the

FULL PERFORMANCE:

33. The acceptance of the deed by the purchaser shall be deemed to be full performance and discharge of every agreement and obligation on the seller's part to be performed pursuant to provisions of this agreement, except those, if any, which are specifically stated in this contract to survive the delivery of the deed.

LIMIT OF SELLER'S OBLIGATIONS:

34. Any obligation to seller to remedy any violations related to the subject premises, to clear any title objections or to obtain any affidavits or certificates required by the municipality to close title on the property shall not exceed a cost to the seller of \$1,000.00 in the aggregate. This paragraph is intended to and does limit the liability of the seller and does not impose any obligations on the seller. The sole purpose of this paragraph is to limit seller's obligations as they may be provided for elsewhere in this agreement.

MORTGAGE CONTINGENCY:

35. This contract is contingent upon seller offering to accept a purchase money mortgage and note from purchaser in the amount of \$600,000.00, pursuant to the terms set forth and in the form of Schedule "B" annexed hereto.

ENTIRE AGREEMENT:

36. All prior understandings and agreements between SELLER and PURCHASER are merged in this contract. It completely expresses their full agreement. It has been entered into after full investigation, neither party relying upon any statements made by anyone else that are not set forth in this contract.

CHANGES MUST BE IN WRITING:

37. This contract may not be changed or cancelled except in writing. The contract shall also apply to and bind the distributees, heirs, executors, administrators, successors and assigns of the respective parties. Each of the parties hereby authorize their attorneys to agree in writing to any changes in dates and time periods provided for in this contract.

SINGULAR ALSO MEANS PLURAL:

38. Any singular word or term herein shall also be read as in the plural whenever the sense of this contract may require it.

INSPECTIONS:

39. The sale is not subject to test for structural, water, sewer, radon, termites or pests, or other tests or inspections not specifically set forth herein. The purchasers have already made or waived all such inspections and tests and found the premises to be in satisfactory and acceptable condition. **Seller makes no representation as to the condition of the premises or any systems servicing the premises. No certificate of occupancy has been issued related to the premises or any structure thereon, nor is this contract or the sale contingent upon a certificate of occupancy.**

NO EARLY OCCUPANCY OR UNAPPROVED ENTRY:

40. Purchaser acknowledges that purchaser shall not be entitled to early occupancy of the premises, has no right to enter upon the premises and shall not enter upon the premises for any reason without prior written approval of seller.

SELLER'S KNOWLEDGE OF ANY UNDERGROUND FUEL TANKS:

41. The Seller has no knowledge of any underground fuel tanks located on the premises.

"AS IS" CONDITION:

42. Purchaser is purchasing the premises with the structure on the premises in "as is" condition, without any certificate of occupancy. Purchaser understands that said structure on the premises is not habitable and there may exist code or other violations. Irrespective of any provisions set forth in this contract or any riders annexed hereto to the contrary, seller shall not be obligated to correct any violations of record or otherwise.

IPA Asset Management, LLC

BY: DAVID D. DEROSA, Member,
SELLER



TIMOTHY PORTER

see attached

HANK UBEROI

PURCHASER

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IPA Asset Management, LLC

BY: DAVID D. DEROSA, Member,
SELLER

see attached

TIMOTHY PORTER

HANK UBEROI

PURCHASER

Contract of Sale

Title No.:

From:

IPA ASSET MANAGEMENT, LLC

To:

TIMOTHY PORTER
AND HANK UBEROI

PREMISES: **724 Old Post Road, New Paltz, NY 12561**

SECTION: **71.2**

BLOCK: **2**

LOT: **42.200**

COUNTY OF ULSTER

RIDER TO CONTRACT

The paragraph numbers below refer to additions to the printed Contract and describe alterations or additions thereto. If any Provision(s) of this Rider shall conflict with any of the printed provisions of this Contract, the provisions of this Rider shall control and supersede the printed Contract.

4. **Subject To Provisions** Premises are sold and shall be conveyed subject to items (a) and (e) provided same are not violated by existing structures and uses, the completion of partially constructed improvements or the intended use as a residential property with customary accessory uses.
23. **Notices** Notices shall be effective upon receipt.
27. **Title Objections**
Copy of the preliminary title report containing standard schedules of requirements and objections shall satisfy the requirement of notice hereunder. Title company reserves the right to amend or supplement the title report from time to time prior to and including day of closing when a customary "run down" of title is completed.
28. **Damage to the Premises**
Purchaser reserves the right to waive this clause and close title subject to any damages.
32. **Contract**
This Contract is fully binding with a fully executed copy is received by Purchaser's attorney.
37. **Change Must Be In Writing**
Purchaser does hereby appoint any attorney associated with the firm of **Graff Law, LLC** as her agent, and Seller does hereby appoint **Peter Matera, Esq.** as his/her agent to execute or otherwise authorize in writing any and all instruments having reference to this Contract, including but not limited to extensions of time for Closing, authorization of the disbursement of funds and form of payments at closing including bank transfers (wires), and modifications of the terms and conditions of this Contract.
41. **Seller's Representations.**
(a) Seller represents to Purchaser that:
(i) Seller is the sole owner of the Premises and has the full right, power and authority to sell, convey and transfer the same in accordance with the terms of this contract;
(ii) Seller is not a "foreign person" as that term is defined for purposes of the Foreign Investment in Real Property Tax Act, Internal Revenue Code ("IRC") Section 145, as amended, and the regulations promulgated thereunder (collectively "FIRPTA");
(iii) The Premises are not affected by any exemptions or abatements of taxes;
(iv) Seller has been known by no other name for the past ten years.
(v) Seller is not in default on any mortgage affecting the premises herein and the premises are not the subject of a mortgage foreclosure action or listed on any tax lien sale list. (For

purposes of this sub-paragraph the term "default" means that the owner is more than 2 months in arrears on mortgage payments). This representation shall survive closing of title.

(vi) Seller represents that to the best of their knowledge no portion of the premises is located in a "flood zone" or "flood way" which would result in required purchase of additional flood protection insurance.

(b) Seller representations set forth in this contract are true and correct at the time this Contract is executed by Seller and shall be true and correct at Closing.

42. **Environmental** ~~The Seller represents that to the best of its member knowledge, information and belief, there has not been any spill or discharge of any petroleum products or environmentally hazardous materials at the premises and that the premises were not used for a landfill, a gasoline station or any industrial activity or the storage or manufacturing of hazardous materials or any other activity which posed a risk of contamination of the premises with environmentally hazardous materials and there exist no underground fuel tanks at the premises.~~
INTENTIONALLY OMITTED

43. **Death of Purchaser**

In the event of catastrophic injury or death of a Purchaser hereunder prior to the delivery of the deed hereunder, Purchaser's legal representative is hereby given the option of declaring the contract null and void whereupon the deposits paid hereunder shall be returned to Purchaser's attorney or legal representative.

44. **Survey**

In the event Purchaser obtains a new or updated survey, Seller agrees to transfer the subject premises using the new survey description in the Deed to Purchaser, in addition to the Deed description from Deed to Seller, provided Purchaser shall have any new or updated survey certified to Purchaser, Seller and Title Company.

45. **Separately Signed Counterparts/Electronic Documents**

This Contract of Sale (and any Addendums or Riders thereto) may be signed separately in various counterparts which, when combined, shall constitute one single Contract of Sale. The parties specifically agree and consent that their signature or the signature of their attorney, attorney-in-fact, or agent transmitted by FAX (facsimile) or e-mail shall be acceptable as if same were original signatures. This provision is made with the intent that all parties be able to expedite this transaction at any and all stages of this transaction by the use of electronically transmitted documents.

SELLER

IPA ASSET MANAGEMENT, LLC

By: _____

PURCHASER


Timothy Porter


Hank Uberoi

purposes of this sub-paragraph the term "default" means that the owner is more than 2 months in arrears on mortgage payments). This representation shall survive closing of title.

(vi) Seller represents that to the best of their knowledge no portion of the premises is located in a "flood zone" or "flood way" which would result in required purchase of additional flood protection insurance.

(b) Seller representations set forth in this contract are true and correct at the time this Contract is executed by Seller and shall be true and correct at Closing.

42. **Environmental** ~~The Seller represents that to the best of its member knowledge, information and belief, there has not been any spill or discharge of any petroleum products or environmentally hazardous materials at the premises and that the premises were not used for a landfill, a gasoline station or any industrial activity or the storage or manufacturing of hazardous materials or any other activity which posed a risk of contamination of the premises with environmentally hazardous materials and there exist no underground fuel tanks at the premises.~~

INTENTIONALLY OMITTED

43. **Death of Purchaser**

In the event of catastrophic injury or death of a Purchaser hereunder prior to the delivery of the deed hereunder, Purchaser's legal representative is hereby given the option of declaring the contract null and void whereupon the deposits paid hereunder shall be returned to Purchaser's attorney or legal representative.

44. **Survey**

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SELLER

IPA ASSET MANAGEMENT, LLC

By: _____

PURCHASER

see attached
Timothy Porter

[Signature]
Hank Uberoi